which reaſon leaſes, and other conveyances, for life, are uſually made to have and to hold for the term of one's *natural* life [d].

THIS natural life being, as was before obſerved, the immediate donation of the great creator, cannot legally be diſpoſed of or deſtroyed by any individual, neither by the perſon himſelf nor by any other of his fellow creatures, merely upon their own authority. Yet nevertheleſs it may, by the divine permiſſion, be frequently forfeited for the breach of thoſe laws of ſociety, which are enforced by the ſanction of capital puniſhments; of the nature, reſtrictions, expedience, and legality of which, we may hereafter more conveniently enquire in the concluding book of theſe commentaries. At preſent, I ſhall only obſerve, that whenever the *conſtitution* of a ſtate veſts in any man, or body of men, a power of deſtroying at pleaſure, without the direction of laws, the lives or members of the ſubject, ſuch conſtitution is in the higheſt degree tyrannical: and that whenever any *laws* direct ſuch deſtruction for light and trivial cauſes, ſuch laws are likewiſe tyrannical, though in an inferior degree; becauſe here the ſubject is aware of the danger he is expoſed to, and may by prudent caution provide againſt it. The ſtatute law of England does therefore very ſeldom, and the common law does never, inflict any puniſhment extending to life or limb, unleſs upon the higheſt neceſſity: and the conſtitution is an utter ſtranger to any arbitrary power of killing or maiming the ſubject without the expreſs warrant of law. "*Nullus liber homo*, ſays the great charter [e], *ali-*"*quo modo deſtruatur, niſi per legale judicium parium ſuorum aut* "*per legem terrae.*" Which words, "*aliquo modo deſtruatur*," according to ſir Edward Coke [f], include a prohibition not only of *killing*, and *maiming*, but alſo of *torturing* (to which our laws are ſtrangers) and of every oppreſſion by colour of an illegal authority. And it is enacted by the ſtatute 5 Edw. III. c. 9. that no man ſhall be forejudged of life or limb, contrary to the great charter and the law of the land: and again, by ſtatute 28 Ed. III.

[d] 2 Rep. 48. Co. Litt. 132.
[e] c. 29.
[f] 2 Inſt. 48.

c. 3. that no man ſhall be put to death, without being brought to anſwer by due proceſs of law.

3. BESIDES thoſe limbs and members that may be neceſſary to man, in order to defend himſelf or annoy his enemy, the reſt of his perſon or body is alſo entitled by the ſame natural right to ſecurity from the corporal inſults of menaces, aſſaults, beating, and wounding; though ſuch inſults amount not to deſtruction of life or member.

4. THE preſervation of a man's health from ſuch practices as may prejudice or annoy it, and

5. THE ſecurity of his reputation or good name from the arts of detraction and ſlander, are rights to which every man is intitled, by reaſon and natural juſtice; ſince without theſe it is impoſſible to have the perfect enjoyment of any other advantage or right. But theſe three laſt articles (being of much leſs importance than thoſe which have gone before, and thoſe which are yet to come) it will ſuffice to have barely mentioned among the rights of perſons; referring the more minute diſcuſſion of their ſeveral branches, to thoſe parts of our commentaries which treat of the infringement of theſe rights, under the head of perſonal wrongs.

II. NEXT to perſonal ſecurity, the law of England regards, aſſerts, and preſerves the perſonal liberty of individuals. This perſonal liberty conſiſts in the power of loco-motion, of changing ſituation, or removing one's perſon to whatſoever place one's own inclination may direct; without impriſonment or reſtraint, unleſs by due courſe of law. Concerning which we may make the ſame obſervations as upon the preceding article; that it is a right ſtrictly natural; that the laws of England have never abridged it without ſufficient cauſe; and, that in this kingdom it cannot ever be abridged at the mere diſcretion of the magiſtrate, without the explicit permiſſion of the laws. Here again the language of the great charter[s] is, that no freeman ſhall be taken or impriſoned,

[s] c. 29.

but

but by the lawful judgment of his equals, or by the law of the land. And many ſubſequent old ſtatutes[h] expreſſly direct, that no man ſhall be taken or impriſoned by ſuggeſtion or petition to the king, or his council, unleſs it be by legal indictment, or the proceſs of the common law. By the petition of right, 3 Car. I, it is enacted, that no freeman ſhall be impriſoned or detained without cauſe ſhewn, to which he may make anſwer according to law. By 16 Car. I. c. 10. if any perſon be reſtrained of his liberty by order or decree of any illegal court, or by command of the king's majeſty in perſon, or by warrant of the council board, or of any of the privy council; he ſhall, upon demand of his counſel, have a writ of *habeas corpus*, to bring his body before the court of king's bench or common pleas; who ſhall determine whether the cauſe of his commitment be juſt, and thereupon do as to juſtice ſhall appertain. And by 31 Car. II. c. 2. commonly called *the habeas corpus act*, the methods of obtaining this writ are ſo plainly pointed out and enforced, that, ſo long as this ſtatute remains unimpeached, no ſubject of England can be long detained in priſon, except in thoſe caſes in which the law requires and juſtifies ſuch detainer. And, leſt this act ſhould be evaded by demanding unreaſonable bail, or ſureties for the priſoner's appearance, it is declared by 1 W. & M. ſt. 2. c. 2. that exceſſive bail ought not to be required.

OF great importance to the public is the preſervation of this perſonal liberty: for if once it were left in the power of any, the higheſt, magiſtrate to impriſon arbitrarily whomever he or his officers thought proper, (as in France it is daily practiced by the crown) there would ſoon be an end of all other rights and immunities. Some have thought, that unjuſt attacks, even upon life, or property, at the arbitrary will of the magiſtrate, are leſs dangerous to the commonwealth, than ſuch as are made upon the perſonal liberty of the ſubject. To bereave a man of life, or by violence to confiſcate his eſtate, without accuſation or trial, would be ſo groſs and notorious an act of deſpotiſm, as muſt at once

[h] 5 Edw. III. c. 9. 25 Edw. III. ſt. 5. c. 4. and 28 Edw. III. c. 3.